

# DEED OF ADHERENCE

to the Shareholders' Agreement of  
**BitWealth Asset Managers (Pty) Ltd**  
(Registration No. 2026/090346/07)

## ENTERED INTO BY AND BETWEEN:

1. BitWealth Asset Managers (Pty) Ltd, Registration No. 2026/090346/07 ("the Company");
2. Davin Harald Gaier, South African, ID 8405025239081 ("Davin");
3. Simon Henry Newbold Hobday, South African, ID 6806175080088 ("Simon"); and
4. Mhuri Investment Holdings (Pty) Ltd, Registration No. 2017/334996/07, a private company incorporated under the laws of the Republic of South Africa, registered address 6 Sardinia, Golf Close, Lonehill, Gauteng, 2196 ("Mhuri").

(Davin, Simon, Mhuri and the Company are collectively "the Parties" and individually a "Party".)

## PREAMBLE

- 10-08-2026*
- DAVIN* *SM* *DG*
- A. Davin, Simon and the Company are parties to a Shareholders' Agreement in respect of the Company dated [insert SHA signature date] ("the SHA"), which governs Simon's Founding Shares, Earn-In Shares and all related rights and obligations.
  - B. The SHA (clauses 11.6 and 20.10) permits Simon to transfer his shares to a holding company without triggering the other Shareholder's pre-emptive rights, provided the transferee signs a deed of adherence confirming it is bound by the SHA in the capacity of a Shareholder.
  - C. Simon has requested, and Davin has agreed, that Mhuri — a private investment holding company owned by Simon and his spouse — be registered as the holder of record of Simon's Founding Shares and any Earn-In Shares that vest under the SHA, instead of Simon holding those shares in his personal capacity.
  - D. Simon is married in community of property, such that his interest in Mhuri (and indirectly in the Ordinary Shares) forms part of the joint estate shared with his spouse.
  - E. The Parties record in this Deed the terms on which Mhuri adheres to the SHA, the safeguards required because the shares will be held through a company rather than by Simon personally, and the spousal consent applicable given Simon's matrimonial property regime.

## THE PARTIES AGREE AS FOLLOWS:

### 1. DEFINITIONS AND INTERPRETATION

- 1.1 Unless otherwise defined in this Deed, terms defined in the SHA bear the same meaning when used in this Deed.

"Deed" this Deed of Adherence.

*DG* *DAVIN* *SM*

**"Mhuri Shares"** all shares in the issued share capital of Mhuri.

**"Simon's Spouse"** the person to whom Simon is married in community of property, and who is a co-shareholder of Mhuri.

**"Change of Control Event"** any change, direct or indirect, in the shareholding, directorship or effective control of Mhuri, including any Transfer of Mhuri Shares, any allotment of new Mhuri Shares to a person other than Simon or Simon's Spouse, any amendment to Mhuri's MOI affecting control, and any division, attachment or reallocation of Mhuri Shares arising from divorce, death, sequestration, liquidation or insolvency of Simon, Simon's Spouse, or their joint estate.

**1.2** This Deed is supplemental to, and forms part of, the SHA. In the event of any conflict between this Deed and the SHA, this Deed prevails to the extent of the conflict, but only insofar as it relates to the substitution of Mhuri as registered shareholder and the matters expressly dealt with in this Deed.

## **2. ADHERENCE AND SUBSTITUTION AS SHAREHOLDER**

**2.1** Mhuri hereby adheres to, and agrees to be bound by, all of the terms of the SHA as if it were named as a Party in the capacity of "Simon", but only to the extent that those terms relate to the holding, transfer, voting, dividend and forfeiture/buy-back rights and obligations attaching to Ordinary Shares (including clauses 2, 3.4–3.7, 7, 8, 9, 10, 11, 12.3, 12.5, 13, 14, 17 and 20 of the SHA).

**2.2** With effect from the date of this Deed: (a) the Founding Shares shall be registered in the name of Mhuri and not Simon; and (b) any Earn-In Shares that vest under clause 8 or 9 of the SHA after the date of this Deed shall likewise be transferred into and registered in the name of Mhuri, in each case subject to the conditions precedent in SHA clause 7.4 and payment of any applicable Securities Transfer Tax by the Company as contemplated in SHA clause 7.5.

**2.3** Wherever the SHA refers to shares being transferred to, held by, retained by, or forfeited or bought back from "Simon", that reference is read as a reference to Mhuri for so long as Mhuri is the registered holder of those shares.

**2.4** The Company shall update its securities register accordingly and Mhuri shall be recorded as a Shareholder for all purposes of the Companies Act and the Company's MOI.

## **3. PERSONAL OBLIGATIONS REMAIN WITH SIMON**

**3.1** For the avoidance of doubt, the substitution of Mhuri as registered shareholder does NOT transfer, dilute or affect any obligation of Simon that is personal to him, including but not limited to: his role and duties as a director and Head of Business Development (SHA clause 4); his obligation to obtain and maintain FAIS accreditation where required (SHA clauses 4.4, 7.4.4 and 19); his restraint of trade, non-solicitation and confidentiality undertakings (SHA clauses 12.8 and 16); and the conduct-based triggers that determine whether he is a Good Leaver or Bad Leaver (SHA clause 12).

**3.2** Where the SHA's Good Leaver / Bad Leaver provisions are triggered by Simon's personal conduct or departure, the CONSEQUENCE of that trigger (retention, forfeiture or forced buy-back of

Handwritten signatures and initials at the bottom right of the page. There are three distinct marks: a circled 'H' with a cross through it, a stylized 'A' or 'S' shape, and the letters 'SM'.

Ordinary Shares) shall be applied against the Ordinary Shares then registered in Mhuri's name, and Mhuri irrevocably undertakes to sign all documents and take all steps necessary to give effect to that consequence within the timeframes specified in the SHA.

- 3.3 Simon remains personally liable, jointly and severally with Mhuri, for any breach of the SHA or this Deed arising from his personal conduct.

#### 4. CHANGE OF CONTROL — DEEMED TRANSFER

- 4.1 Simon and Mhuri warrant that, as at the date of this Deed, the Mhuri Shares are held only by Simon and Simon's Spouse, and that Mhuri holds no assets other than its shareholding in the Company (and any other permitted investments agreed with Davin in writing).
- 4.2 A Change of Control Event is DEEMED to be a Transfer of the Ordinary Shares then held by Mhuri for the purposes of clauses 11 (Transfer Restrictions and Pre-Emptive Rights), 12 (Good Leaver, Bad Leaver and Mutual Protections) and 13 (Drag-Along and Tag-Along Rights) of the SHA, and those clauses apply mutatis mutandis as if Mhuri itself were transferring the Ordinary Shares, regardless of whether any Ordinary Share is itself transferred.
- 4.3 Simon and Mhuri shall give the Company and Davin at least 20 (twenty) Business Days' prior written notice of any proposed Change of Control Event, save where the event arises from death, sequestration or a court order, in which case notice shall be given as soon as reasonably possible.
- 4.4 Mhuri shall procure that its MOI, and any shareholders' agreement between its own shareholders, is not adopted or amended in a manner that conflicts with, or frustrates, this Deed or the SHA.

#### 5. MATRIMONIAL PROPERTY AND SPOUSAL CONSENT

- 5.1 Simon confirms that he is married in community of property to Simon's Spouse, such that the Mhuri Shares held by both Simon and Simon's Spouse form part of their joint estate.
- 5.2 Simon's Spouse signs the Spousal Consent attached as Annexure A to this Deed, confirming that she: (a) is aware of the terms of the SHA and this Deed; (b) consents, to the extent required under section 15 of the Matrimonial Property Act 88 of 1984 or otherwise, to the Mhuri Shares and the underlying Ordinary Shares being subject to the SHA and this Deed, including the restraint of trade, confidentiality, transfer restriction, drag-along/tag-along and Leaver provisions; and (c) agrees that clause 4 of this Deed (Change of Control) applies notwithstanding any future division of the joint estate on divorce or death.
- 5.3 Simon and Mhuri shall promptly notify the Company and Davin of any change in Simon's marital status or matrimonial property regime, and shall procure an equivalent consent from any new or substituted spouse before that person acquires any interest in Mhuri.

#### 6. INSOLVENCY OF MHURI OR THE JOINT ESTATE

- 6.1 If Mhuri is placed under business rescue, wound up or liquidated, or if Simon, Simon's Spouse or their joint estate is provisionally or finally sequestrated, this shall be treated as a Bad Leaver event under SHA clause 12.4 in respect of the Ordinary Shares held by Mhuri, entitling the Company and

Handwritten signatures of Simon, Simon's Spouse, and Davin.

Davin to invoke the forced transfer / buy-back mechanism in SHA clause 12.5, subject to the independent valuation required by SHA clause 12.5.3.

- 6.2** This clause 6 does not apply to the extent the relevant insolvency event arises from circumstances that would constitute a Good Leaver event for Simon under SHA clause 12.2, in which case the Good Leaver consequence in SHA clause 12.3 applies instead.

## **7. TAX AND SECURITIES TRANSFER TAX**

- 7.1** The Parties acknowledge that the conditions precedent in SHA clause 7.4 (including independent legal and tax advice) apply equally to a transfer of shares to Mhuri, and confirm that such advice shall specifically address: (a) the income tax, donations tax and CGT consequences of transferring shares to a company rather than to Simon personally; and (b) any risk that SARS treats the value transferred as remuneration for Simon's personal services (assignment of income), rather than as a transfer to Mhuri, for tax purposes.
- 7.2** Securities Transfer Tax and other transfer costs remain for the account of the Company as provided in SHA clause 7.5, irrespective of Mhuri being the transferee.

## **8. NOTICES**

- 8.1** For all matters relating to Mhuri's shareholding, Mhuri's domicilium for notices under SHA clause 20.6 is:

Mhuri Investment Holdings (Pty) Ltd: 6 Sardinia, Golf Close, Lonehill, Gauteng, 2196 | Email: [Newbold500@gmail.com](mailto:Newbold500@gmail.com) and [zitapeace1@gmail.com](mailto:zitapeace1@gmail.com)

- 8.2** Simon's domicilium for all matters relating to his personal obligations (director duties, FAIS representative status, restraint, confidentiality) remains as recorded in the SHA signature block.

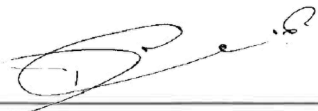
## **9. GENERAL**

- 9.1** This Deed, read together with the SHA, constitutes the whole agreement between the Parties regarding Mhuri's adherence to the SHA and supersedes any prior understanding on that subject.
- 9.2** No amendment to this Deed is valid unless in writing and signed by all Parties.
- 9.3** This Deed is governed by the laws of the Republic of South Africa, and the dispute resolution mechanism in SHA clause 18 applies to any dispute arising under this Deed as if it were a dispute under the SHA.
- 9.4** This Deed may be signed in counterparts, each of which constitutes an original, and all together constitute one Deed.

## SIGNATURES

SIGNED BY THE PARTIES at the places and on the dates indicated below, each signatory warranting full authority:

### FOR AND ON BEHALF OF BITWEALTH ASSET MANAGERS (PTY) LTD

Signed: 

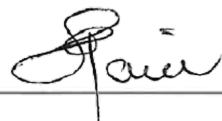
Date: 23/08/2026

Full Name: Davin Harald Gaier

Capacity: Managing Director / Founder

At: Kempton Park

Email: [davin.gaier@bitwealth.co.za]

Witness 1: 

Witness 2: \_\_\_\_\_

### SIMON HENRY NEWBOLD HOBDAY IN HIS PERSONAL CAPACITY

Signed: 

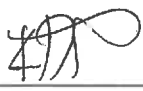
Date: 20-08-2026

Full Name: Simon Henry Newbold Hobday

Capacity: Business Development Partner

At: Business Bureau

Email: newbold500@gmail.com

Witness 1:   
Keenes dTait

Witness 2:   
Sheila Mawiso

**FOR AND ON BEHALF OF MHURI INVESTMENT HOLDINGS (PTY) LTD**

Signed: \_\_\_\_\_

Date: 20-08-2026

Full Name: Simon Henry Newbold Hobday

Capacity: Director, duly authorised

At: Johannesburg

Email: newbold500@gmail.com

Witness 1: \_\_\_\_\_

Witness 2: \_\_\_\_\_

**FOR AND ON BEHALF OF MHURI INVESTMENT HOLDINGS (PTY) LTD (SECOND DIRECTOR, IF REQUIRED BY ITS MOI)**

Signed: \_\_\_\_\_

Date: 20-08-2026

Full Name: [Full name of Simon's Spouse]

Capacity: Director, duly authorised

At: Johannesburg

Email: zitapeace1@gmail.com

Witness 1:  Karen D Toi

Witness 2:  Sheng Mando

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## ANNEXURE A — SPOUSAL CONSENT

I, Zita Karen Peace, ID 6503270128082, being married in community of property to Simon Henry Newbold Hobday and a shareholder of Mhuri Investment Holdings (Pty) Ltd (Registration No. 2017/334996/07), confirm that:

1. I have read and understood the Shareholders' Agreement of BitWealth Asset Managers (Pty) Ltd and this Deed of Adherence;
2. I consent, to the extent required under section 15 of the Matrimonial Property Act 88 of 1984 or otherwise, to the Mhuri Shares and the underlying Ordinary Shares in BitWealth Asset Managers (Pty) Ltd being subject to, and dealt with in accordance with, the Shareholders' Agreement and this Deed of Adherence, including the restraint of trade, confidentiality, transfer restriction, drag-along/tag-along and Leaver provisions contained in them;
3. I agree that clause 4 of the Deed of Adherence (Change of Control) will apply notwithstanding any future division of our joint estate on divorce or death; and
4. I will not, without the prior written consent of Davin Harald Gaier and BitWealth Asset Managers (Pty) Ltd, deal with the Mhuri Shares in any manner inconsistent with the Shareholders' Agreement or this Deed of Adherence.

## SPOUSAL CONSENT

Signed: 

Date: 20-08-2026

Full Name: Zita Karen Peace

Capacity: Shareholder of Mhuri

At: \_Johannesburg

Email: zitapeace1@gmail.com

Witness 1:

 Keenen Du Toit

Witness 2:

 Sheila Mawilo